

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TOSHIA PARKS,

Plaintiff,

- against -

CITY OF NEW YORK; POLICE OFFICER EDWARD
GASTON, POLICE OFFICER ADAM MUNIZ, SERGEANT
JAMES DAVINO, CAPTAIN ABRAHAM. BADILLO

Defendants.
-----X

SUMMONS

Plaintiff designates New York
County as the place of trial.

The basis of venue is:
The county in which the
action arose per CPLR 504(3)

The cause of action arose in
New York County and is
against the City of New York

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in ther action, and to serve a copy of your answer, or, if the complaint is not served with ther summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of ther summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
November 10, 2024

DEFENDANT'S ADDRESS:

City Of New York
NYC Law Dept.
100 Church St.,
New York, NY 10007

POLICE OFFICER EDWARD GASTON
One Police Plaza
New York, NY 10038

POLICE OFFICER ADAM MUNIZ
One Police Plaza

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
14 Wall St, Ste 1603
New York, NY 10005

New York, NY 10038

SERGEANT JAMES DAVINO

One Police Plaza

New York, NY 10038

CAPTAIN ABRAHAM. BADILLO

One Police Plaza

New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index No.:

-----X
TOSHIA PARKS,

Plaintiff,

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK; POLICE OFFICER EDWARD
GASTON, POLICE OFFICER ADAM MUNIZ, SERGEANT
JAMES DAVINO, CAPTAIN ABRAHAM. BADILLO

Defendants.
-----X

Plaintiff, TOSHIA PARKS, by her attorneys. LORD LAW GROUP PLLC, alleges upon knowledge as to himself and her own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff TOSHIA PARKS brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of her civil rights, the New York City Administrative Code, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

3. That at all times hereinafter mentioned, Officers Edward Gaston, Adam Muniz, James Davino, and Abraham Badillo were employees of the New York City Police Department, acting in their capacity as Police Officers and under color of law.

4. That all acts and incidents complained of herein occurred in New York County, and State of New York.

5. That by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of the action.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

11. On July 04, 2023, while Plaintiff's car was parked, an officer was rude and disrespectful towards her four year old child.

12. Toshia attempted to get this officers information so she could file a report.

13. Toshia spoke with a specific officer, who upon information and belief was Lt. Badillo, who essentially refused to give her the information she requested.

14. While he did not outright deny her, he also did not comply with her request and made statements such as: "I'm not going to do what you want me to do;" and "Not on your time."

15. It was readily apparent that the officer had any intent on ever giving her the information as Toshia even eventually offered to write the information on her arm, yet this officer still would not give her the information for the Complaint.

16. At some point, an ambulance is stuck in traffic and slowly coming down the street.

17. The officer orders Toshia to the sidewalk, ostensibly to allow the ambulance to pass, yet she is not blocking the ambulance nor any other vehicle from passing.

18. Despite this, Toshia is violently arrested. As she is slammed to the ground her shoulder is dislocated, requiring surgery to repair.

19. Toshia was charged with, *inter alia*, assault in the second degree. The officer fabricated an account where Toshia assaulted him, which is patently false.

20. All charges against Toshia were ultimately dismissed.

23. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

Claim I: False Arrest Under 42 USC § 1983

24. Plaintiff was arrested in the absence of probable cause, at the direction of, Defendants.

25. As a result of the aforesaid conduct by Defendants, Plaintiff was subjected to illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

26. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

27. As a result of Defendants' impermissible conduct, Plaintiff demand judgment against Defendants' in a sum of money to be determined at trial.

Claim II: Fabrication of Evidence Under 42 U.S.C. § 1983

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

29. Officers forwarded false information to the NYDA which resulted in Plaintiff spending a longer time in custody than she would otherwise. Specifically, the claims that Plaintiff assaulted an officer, though false, resulted in prolonging the incarceration.

30. The acts and conduct of the defendants were the direct and proximate cause of plaintiff's arrest and injury to the plaintiff, and violated his statutory and common law rights as guaranteed by the laws and Constitution.

31. All of the aforementioned acts of the individual defendants and their agents, servants, and employees, were carried out under the color of state law.

32. As a result of the foregoing, plaintiffs were caused to suffer physical, psychological and emotional injuries, violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

Claim III: Excessive Force Under 42 U.S.C. § 1983

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

34. In detaining plaintiff, Defendants used force.

35. The force used was unreasonable and excessive.

36. As a result of the unreasonable and excessive force, plaintiff suffered injuries requiring, physical rehabilitation, and substantial pain.

37. Defendants' use of force was a substantial factor in causing the harm to plaintiff.

38. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

Claim II: Failure To Intervene Under 42 USC § 1983

24. Plaintiff repeats and re-alleges each and every allegation as if fully set forth herein.

25. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct, had a duty to intervene and prevent such conduct and failed to intervene.

26. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

27. As a direct and proximate result of their unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Claim III: Violations of the New York State Constitution

37. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

38. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- a. freedom from unreasonable search and seizure of her person and property;
- b. freedom from arrest without probable cause;
- c. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which

wrongful detention plaintiff was aware and did not consent;

- d. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- e. freedom from deprivation of liberty without due process of law.

39. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

40. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

41. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**Claim IV: Individual Defendant Officer's Violation of Plaintiff's
AC § 8-802 Rights**

42. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

43. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

44. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in

connection with a search or seizure.

45. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately one day in total.

46. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

**Claim V: Individual Defendant Officer's Failure to Intervene in
Violation of Plaintiff's AC § 8-802 Rights**

47. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

48. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

49. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

50. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

51. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her

rights.

52. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

**Claim VI: City-Employer's Liability for Defendant Officer's
Violation of Plaintiff's AC § 8-802 Rights**

53. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

54. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

55. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

56. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

57. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

58. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately one day in total.

59. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

Claim VII: City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC § 8-802 Rights

60. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

61. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

62. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

63. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

64. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

65. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 - 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

66. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

67. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injure

DAMAGES

68. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of her civil rights under the Fourth, Fifth, Sixth, Eighth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

69. Ther action seeks damages from on or prior to July 04, 2023 through the present.

70. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of property, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation .

71. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as the court November deem appropriate and equitable.

Dated: New York, New York
November 10, 2024

Yours, etc.

LORD LAW GROUP PLLC



Masai I. Lord
Attorneys for Plaintiff
TOSHIA PARKS
14 Wall St., Ste 1603
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD LAW GROUP PLLC, attorneys of record for Plaintiff TOSHIA PARKS. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

Ther verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
November 10, 2024



MASAI I. LORD
Counsel for Plaintiff